

24STCV17175 24STCV17175

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 24STCV17175 Hearing Date: August 4, 2026 Dept: 732

Nicolas Moore v. Volkswagen Group of America, Inc., et al.

Tuesday, August 4, 2026

CASE NUMBER: 24STCV17175

OPPOSED

Plaintiff Nicolas

Moore's Motion for Attorney Fees

Facts:

This is a lemon law action. The Complaint alleges as follows. Plaintiff Nicolas Moore ("Plaintiff") in June 2023 leased a 2023 Audi e-tron with express warranties. (Complaint ¶¶ 2, 5, 8.) The vehicle contained or developed various defects, which the manufacturer has not been able to remedy. (Complaint ¶ 10.)

Procedural History: Plaintiff filed the

Complaint on July 11, 2024, alleging three causes of action:

1.

Civil Code § 1793.1, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Breach of Implied Warranty of Merchantability

Defendant Volkswagen Group of America, Inc. filed an answer on August 12, 2024.

A notice of settlement was filed on February 25, 2026.

Plaintiff filed the present motion for attorney fees on May 4, 2026.

Defendant filed an opposition on May 21, 2026.

Plaintiff filed a reply on May 28, 2026.

Analysis:

I.

MOTION FOR ATTORNEY FEES

Parties to litigation must generally bear their own attorney's fees, unless they otherwise agree. (Code Civ. Proc. § 1021.) However, the Song-Beverly Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If

the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code § 1794, subd. (d).)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of

discretion.” (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623.) In exercising its discretion, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (See id.)

In determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. “Fundamental to its determination . . . [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney . . . in the presentation of the case.” (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at p. 49.) “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV).) The Court in Serrano IV also stated that fees associated with preparing the motion to recover attorneys’ fees are recoverable. (See id. at p. 624.)

Plaintiff Nicolas Moore (“Plaintiff”) seeks attorney fees following the settlement of his Song Beverly lemon law claims in the amount of \$28,930.00 in attorney fees and \$902.61 in costs. (Motion at p. 14.) This amount reflects a lodestar of 54 hours of attorney and paralegal work by six timekeepers (three attorneys and three paralegals/law clerks) by ranging in hourly rates from \$285 per hour to \$695 per hour. (Sannipoli Decl. ¶ 50, Exh. A.) This yields a mean hourly rate of about \$535.74 across the lodestar.

Defendant in opposition argues that the hourly rates charged by Plaintiff’s counsel in this matter are excessive. (Opposition at pp. 5–8.) Defendant also objects to various charges submitted by Plaintiff’s counsel as unreasonable, excessive, or ill-explained. (Opposition at pp. 8–11.) Defendant finally argues that Plaintiff seeks costs not compensable under Code of Civil Procedure § 1033.5. (Opposition at p. 11.)

Defendant’s argument as to hourly rates is persuasive. The “reasonable hourly rate [used to calculate the lodestar] is the product of a

multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139.) Plaintiff's attorneys here charge rates of \$695 and \$665/\$685 (depending on the year) for partners and \$595/\$585 (depending on the year) for one other senior attorney. (Sannipoli Decl. ¶ 50.) But based on the relative simplicity of this case, the skill necessary to prosecute it, and the survey of fees charged by other attorneys of similar experience presented by Plaintiff's counsel (Sannipoli Decl. ¶ 53), the court concludes that the reasonable hourly rates charged in this matter ought to be \$550 for partners, and \$425 for other attorneys. Applying this figure yields the following immediate reduction to the lodestar:

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Brian J. Bickel: \$145

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Jordan K. Sannipoli: \$2,496.50

.

Joshua J. Youssefi: \$2,257.00

(Sannipoli Decl. Exh. B.) Thus applying reasonable hourly rates to the request yields a reduction of \$4,898.50.

Defendant's other objections to the fee lodestar are hit-and-miss. Defendant objects to a single block-billed "flat rate" charging entry describing a variety of work performed during the onboarding of Plaintiff as a client, amounting to 7.3 hours of attorney work. (Opposition at pp. 8–9; Sannipoli Decl. Exh. A.) Yet the billing entry describes the work performed in reasonable detail, all of it is compensable under Civil Code § 1794, subd. (d), and Plaintiff offers a persuasive justification for this form of billing in reply, noting that different billing practices are used for client intake prior to formal retention as counsel. (Reply at pp. 4–5.) "Trial courts retain discretion to penalize block billing when the practice prevents them from discerning which tasks are compensable and which are not." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1010.) The use of the practice here does not prevent the court from undertaking this task. Nor does Defendant

offer a persuasive explanation as to why the eleven hours sought in connection with settlement negotiations ought not to be compensated. (Opposition at pp. 9–10.)

However, the amount sought in connection with the present fee motion ought to be reduced. Review of the billings presented by Plaintiff indicates that he seeks reimbursement for 16.3 hours of attorney work associated with the fee motion or the auditing of billing records associated therewith, plus 9.1 hours of related paralegal or law clerk work. (Sannipoli Decl. Exh. A.) In light of Plaintiff's admitted use of templates for the present motion (Reply at p. 7), and in light of the relatively straightforward path of this litigation — with no exchange of written discovery, depositions, or motion practice prior to settlement — the amount of attorney work associated with the present motion is reasonably reduced to eight hours, and the paralegal time to four hours, yielding a reduction of \$4,675.50.

Accordingly, the requested fee lodestar is reduced from \$28,930.00 to \$19,356.00.

Defendant's objections to cost items, meanwhile, are not persuasive. Although Defendant distinguishes costs for service of process — compensable as of right under Code of Civil Procedure § 1033.5 — from costs for service of documents generally (Opposition at p. 11), these latter costs are not prohibited by section 1033.5, and are in any event compensable as "expenses" under Civil Code § 1794, subd. (d).

Thus the motion for attorney fees is GRANTED for fees in the amount of \$19,356.00 and costs in the amount of \$902.61.

Superior Court of California

County of Los Angeles

Department 732

NICOLAS MOORE,

Plaintiff,

v.

VOLKSWAGEN GROUP OF AMERICA, INC.,
et al.

Defendant(s).

Case No.:
24STCV17175

Hearing Date: August 4, 2026

[TENTATIVE] RULING RE:

Plaintiff Nicolas Moore's
Motion for Attorney Fees

Plaintiff Nicolas Moore's Motion for Attorney Fees is GRANTED for fees in the amount of \$19,356.00
and costs in the amount of \$902.61.

Plaintiff to provide Notice.

Dated: August 4, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court